



CHAPTER 59.

An Act to provide for the extension of polling hours at county council and borough council elections. A.D. 1938.
[29th July 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Paragraph 3 of Part III of the Second Schedule to the Local Government Act, 1933, shall have effect as though the following were added thereto :— Extension
of hours of
poll.
23 & 24
Geo. 5. c. 51.

“ Provided that where—

(a) a candidate nominated at an election of a councillor for an electoral division of a county, or

(b) a number of candidates nominated at an election of councillors for a borough not divided into wards, or at an election of councillors for a ward of a borough divided into wards, not being less than the number of councillors to be elected at the election,

by notice or notices in writing signed by him, or, as the case may be, by them, and delivered at the place at which notices of withdrawals from candidatures are required to be delivered not later than the time appointed for that purpose by Part II of this Schedule, requests, or as the

A.D. 1938.
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case may be, request, that the poll at that election may be kept open till nine o'clock in the afternoon of the day on which the poll commences, then, subject to the succeeding provisions of this paragraph, the poll shall be kept open until nine o'clock in the afternoon of that day and no longer.

A notice given by any candidate for the purposes of the foregoing proviso shall be of no effect if the candidate is not validly nominated, or if he withdraws, or is deemed to have withdrawn, from his candidature, or if he withdraws the notice by a further notice in writing signed by him and delivered at the place aforesaid not later than the time appointed for the delivery of the first-mentioned notice."

Short title
and repeal.

2.—(1) This Act may be cited as the Local Government (Hours of Poll) Act, 1938.

23 & 24
Geo. 5.
c. lxxviii.

(2) Section two hundred and forty-two of the Barking Corporation Act, 1933 (which relates to the hours of poll at municipal elections at the borough of Barking), is hereby repealed.

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